

Sun charger, electrical charger, USB charger, adaptor/transformator, rechargeable products

Produit : Electronic / Measuring devices

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USA

Product's definition

Category

In which category the product is classified ?

ELECTRONIC / MEASURING DEVICES - Sun charger, Electrical charger, USB charger, Adaptor/transformator

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Federal Law:

Battery Chargers

A "battery charger" is a "device that charges batteries for consumer products, including battery chargers embedded in other consumer products." To the extent the products in this category are used to charge batteries, they will be considered "battery chargers." [10 C.F.R. § 430.2](#)

External Power Supplies

Department of Energy ("DOE") regulations define "External power supply" as "an external power supply circuit that is used to convert household electric current into DC current or lower-voltage AC current to operate a consumer product." [10 C.F.R. § 430.2](#). Note that DOE regulations recognize a number of subcategories of external power supplies – see [10 C.F.R. § 430.2](#) for more details.

FCC Radio Frequency Devices

Some electronic products will be considered an "intentional radiator" under Federal Communication Commission (FCC) rules. Intentional radiators are defined as any "device that intentionally generates and emits radio frequency energy by radiation or induction." [47 C.F.R. § 15.3\(o\)](#). According to [FCC guidance](#), this includes products that contain Bluetooth or WiFi connectivity. Other examples include: wireless garage door openers, wireless microphones, RF universal remote control devices, cordless telephones, wireless alarm systems, Wi-Fi transmitters, and Bluetooth radio devices. If the Decathlon product at issue has built-in WiFi or Bluetooth, or otherwise satisfies the definition above, it will be considered an intentional radiator. See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators. Note that where that card refers to Bluetooth specifically, it is equally applicable to all other "intentional radiators."

If the product is not considered an "intentional radiator," it will almost certainly be considered an "unintentional radiator." An unintentional radiator is defined as "a device that intentionally generates radio frequency energy [Electromagnetic energy at any frequency in the radio spectrum between 9 kHz and 3,000,000 MHz] for use within the device, or that sends radio

frequency signals by conduction to associated equipment via connecting wiring, but which is not intended to emit RF energy by radiation or induction.” [47 C.F.R. § 15.3\(z\)](#). According to [FCC guidance](#), the majority of modern electronic products that are not considered “intentional radiators” will be regulated as “unintentional radiators.” Examples of unintentional radiators include: coffee pots, wrist watches, cash registers, personal computers, printers, telephones, garage door receivers, wireless temperature probe receiver, RF universal remote control and thousands of other types of common electronic-electrical equipment that rely on digital technology. Because chargers likely qualify as unintentional radiators, those FCC requirements are detailed in this card. If a product meets the definition of intentional radiators given above, please see the “Electronic equipment with Bluetooth” card for relevant requirements

A “digital device” is “an unintentional radiator (device or system) that generates and uses timing signals or pulses at a rate in excess of 9,000 pulses (cycles) per second and uses digital techniques; inclusive of telephone equipment that uses digital techniques or any device or system that generates and uses radio frequency energy for the purpose of performing data processing functions, such as electronic computations, operations, transformations, recording, filing, sorting, storage, retrieval, or transfer.” [47 C.F.R. § 15.3\(k\)](#).

A “Class B digital device” is a “digital device that is marketed for use in a residential environment notwithstanding use in commercial, business and industrial environments.” [47 C.F.R. § 15.3\(i\)](#). Any Decathlon products that qualify as “digital devices” will likely be considered “Class B digital devices.” If the product is not an intentional radiator, it will almost certainly be considered a Class B digital device.

California Law (mandatory energy efficiency):

California's Appliance Efficiency Regulations apply to Power Supplies, and to the extent not preempted by federal law, to Battery Charging Systems (“BCS”) as well (see below for more information on preemption. [20 CCR 1601](#)).

[20 CCR 1601\(u\)](#) defines “Power supplies” as single voltage external AC to DC and AC to AC power supplies included with other retail products, and single voltage external AC to DC or AC to AC power supplies sold separately excluding power supplies that are classified as devices for human use under the Federal Food, Drug, and Cosmetic Act and require U.S. Food and Drug Administration listing and approval as a medical device.

[20 CCR 1602](#) provides the following additional CA definitions related to Power Supplies:

“State-regulated external power supply” means a single-voltage external AC to DC or AC to AC power supply that: (1) is designed to convert line voltage AC input into lower voltage DC or AC output; (2) is able to convert to only one DC or AC output voltage at a time; (3) is sold with, or intended to be used with, a separate end-use product that constitutes the primary load; (4) is contained within a separate physical enclosure from the end-use product; (5) is connected to the end-use product via a removable or hard-wired male/female electrical connection, cable, cord, or other wiring; (6) does not have batteries or battery packs that physically attach directly (including those that are removable) to the power supply unit; (7) does not have a battery chemistry or type selector switch and an indicator light; or, does not have a battery chemistry or type selector switch and a state of charge meter; (8) has a nameplate output power less than or equal to 250 watts. The term “state-regulated external power supply” does not include a device that is a “Class A external power supply” that is federally regulated.

“Federally regulated external power supply” means an external power supply circuit that is used to convert household electric current into DC current or lower-voltage AC current to operate a consumer product.

“Class A external power supply” that is a federally regulated external power supply means an external power supply circuit that is used to convert household electric current into DC current or lower-voltage AC current to operate a consumer product and that: (1) is designed to convert line voltage AC input into lower voltage AC or DC output; (2) is able to convert to only one AC or DC output voltage at a time; (3) is sold with, or intended to be used with, a separate end-use product that constitutes the primary load; (4) is contained in a separate physical enclosure from the end-use product; (5) is connected to the end-use product via a removable or hard-wired male/female electrical connection, cable, cord, or wiring; and (6) has nameplate output power that is less than or equal to 250 watts.

The term “Class A external power supply” does not include a device that: (A) requires Federal Food and Drug Administration listing and approval as a medical device in accordance with section 513 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360c); or (B) powers the charger of a detachable battery pack or charges the battery of a product that is fully or primarily motor operated.

“Active mode” for federally regulated external power supplies and state-regulated external power supplies means the mode of operation when an external power supply is connected to the main electricity supply and the output is connected to a load.

“No-load mode” means the mode of operation when a Class A external power supply is connected to the main electricity supply and the output is not connected to a load.

“Basic-voltage external power supply” means an external power supply that is not a lowvoltage external power supply.

“Direct operation external power supply” means an external power supply that can operate a consumer product that is not a battery charger without the assistance of a battery.

“Indirect operation external power supply” means an external power supply that cannot operate a consumer product that is not a battery charger without the assistance of a battery as determined by the steps in paragraphs (1)(A) through (E) of this definition: (1) If the external power supply (EPS) can be connected to an end-use consumer product and that consumer product can be operated using battery power, the method for determining whether that EPS is incapable of operating that consumer product directly is as follows: 197 (A) If the end-use product has a removable battery, remove it for the remainder of the test and proceed to the step in paragraph (1)(E) of this definition. If not, proceed to the step in paragraph (1)(B). (B) Charge the battery in the application via the EPS such that the application can operate as intended before taking any additional steps. (C) Disconnect the EPS from the application. From an off mode state, turn on the application and record the time necessary for it to become operational to the nearest five second increment (5 seconds, 10 seconds, etc.). (D) Operate the application using power only from the battery until the application stops functioning due to the battery discharging. (E) Connect the EPS first to mains and then to the application. Immediately battery was removed for testing and the end-use product operates as intended, the EPS is not an indirect operation EPS and paragraph 2 of this definition does not apply. If the battery could not be removed for testing, record the time for the application to become operational to the nearest five second increment (5 seconds, 10 seconds, etc.). (2) If the time recorded in paragraph (1)(E) of this definition is greater than the summation of the time recorded in paragraph (1)(C) of this definition and five seconds, the EPS cannot operate the application directly and is an indirect operation EPS.

“Low-voltage external power supply” means an external power supply with a nameplate output voltage less than 6 volts and nameplate output current greater than or equal to 550 milliamps.

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Some of the products in this category may include a regulated "battery charger system" (BCS). BCS is defined under California law as "a battery charger coupled with its batteries" and includes "all rechargeable batteries or devices incorporating a rechargeable battery and the chargers used with them." [20 Cal. Code Regs. §1602\(w\)](#). Note: as of June 13, 2018, the California standards for BCS are largely, but not completely preempted by the federal BCS standards. See <https://www.energy.ca.gov/programs-and-topics/programs/appliance-efficiency-program-outreach-and-education/federal-battery>. It appears that most if not all Decathlon products will fall within the federal definition of battery charging systems, which will mean that only the federal (DOE) requirements apply. However, just in case Decathlon has any products that fall outside the federal definition (and hence still regulated by California), this card still includes the California BCS requirements for reference. On and after January 1, 2019, all federally regulated battery chargers must be certified to the CEC's database as a federally regulated consumer product. After January 2019, models that were certified with a voluntary status will be automatically changed to a 'C' status for a 'Federally Regulated Consumer Product.'

Please see the Battery card for federal and state requirements applicable to batteries.

Comments

Comments

Helpful DOE guidance regarding compliance with external power supply regulations is available [here](#).

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

English

Mandatory labelling on product

What are the mandatory labelling on the product ?

Federal Law:

Country of Origin Marking Requirements

All products are required to comply with country of origin marking regulations. See [19 U.S.C. § 1304](#); [19 CFR § 134.11](#); and importation section of this card. When an article or its container is required to be marked with the country of origin, the marking is considered sufficiently permanent if it will remain on the article or container until it reaches the ultimate purchaser. See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>.

External power supplies "External power supplies" must be labeled in accordance with the International Efficiency Marking Protocol for External Power Supplies. [10 C.F.R. § 430.32\(w\)](#). A DOE fact sheet summarizing those labeling requirements, which vary based on the size and efficiency of the power supply, is available [here](#).

For requirements applicable to products that contain batteries, please see the "Batteries" card.

FCC Radio Frequency Devices: Products considered to be an "unintentional radiator" are subject to regulation by the FCC.

Depending on the type of FCC equipment authorization applicable to the device (see the "Certifications/Registrations" section), different labels may be required. See below for specific guidance on the labels required (note: "unintentional radiators" are subject to Part 15):

- [FCC's "Equipment Authorization" webpage](#) provides general guidance, and a useful overview of its different authorization programs.
- [784748 D01 General Labeling and Notification v09r01](#) provides the labeling and compliance information required for products based on the equipment authorization procedure that applies to the particular product.
- [784748 D02 E Labeling v02](#) provides guidance for electronic labeling (e-labeling, e-label) for devices with an integrated electronic display, or those devices that only operate in conjunction with another associated product that has an electronic display.

Note, however, that certain devices are exempt from the FCC labeling requirements. [47 CFR § 15.103](#). Relevant here, the following exemptions may apply to the Decathlon products in this category:

- Digital devices that have a power consumption not exceeding 6 nW;
- Digital devices in which both the highest frequency generated and the highest frequency used are less than 1.705 MHz and which do not operate from the AC power lines or contain provisions for operation while connected to the AC power lines. Digital devices that include, or make provision for the use of, battery eliminators, AC adaptors or battery chargers which permit operation while charging or that connect to the AC power lines indirectly, obtaining their power through another device which is connected to the AC power lines, do not fall under this exemption.

Unless they meet one of the above exemptions or are considered "intentional radiators," Decathlon products will likely require a Supplier's Declaration of Conformity ("SDoC") [47 CFR 15.101](#). As a result, the following statement must appear in conspicuous location on the device, or if not practicable, in prominent location in user manual:

- "This device complies with part 15 of the FCC Rules. Operation is subject to the following two conditions: (1) This device may not cause harmful interference, and (2) this device must accept any interference received, including interference that may cause undesired operation." [47 C.F.R. § 15.19](#).

In addition, products that are subject to SDoC requirements must be labeled with a “unique identifier:”

- Devices subject only to Supplier's Declaration of Conformity shall be uniquely identified by the party responsible for marketing or importing the equipment within the United States. However, the identification shall not be of a format which could be confused with the FCC Identifier required on certified equipment. The responsible party shall maintain adequate identification records to facilitate positive identification for each device. [47 C.F.R. § 2.1074](#).

California Law:

Power Supplies: Per [20 CCR 1607\(d\)\(8\)\(A\)](#), any federally regulated external power supply shall be clearly and permanently marked in accordance with the International Efficiency Marking Protocol for External Power Supplies, Version 3.0, September 2013.

Per [20 CCR 1607\(d\)\(8\)\(B\)](#), any state-regulated external power supply complying with the requirements of Section 1605.3(u) shall be clearly and permanently marked in accordance with the International Efficiency Marking Protocol for External Power Supplies, Version 3.0, September 2013.

Battery Charging Systems (BCS): Note: California requirements for BCS, including labeling, have been preempted by the federal BCS standard so long as the product meets the federal definition of Battery Charging System. See <https://www.energy.ca.gov/programs-and-topics/programs/appliance-efficiency-program-outreach-and-education/federal-battery>.

For BCS that do not meet the federal definition (and hence are regulated by California), the following information shall be permanently, legibly, and conspicuously displayed on an accessible place on each battery charger system:

- manufacturer's name or brand name or trademark (which shall be either the name, brand, or trademark of the listed manufacturer specified pursuant to Section 1606(a)(2)(A) or, if applicable, the designated manufacturer specified pursuant to Section 1606(f)(1)(F));
- model number; and
- date of manufacture, indicating (i) year and (ii) month or smaller (e.g. week) increment. If the date is in a code that is not readily understandable to the layperson, the manufacturer shall immediately, on request, provide the code to the Energy Commission.

Each state-regulated battery charger system shall be marked with a “BC” inside a circle. The marking shall be legible and permanently affixed to:

- the product nameplate that houses the battery charging terminal or;
- the retail packaging and, if included, the cover page of the instructions.

[20 CCR § 1607\(b\), \(d\)\(10\)](#).

Massachusetts Law (mercury-added products): No one may sell a mercury-added product unless the product is labeled by the manufacturer as follows ([MGL 21H, 310 CMR 75](#)). A “mercury-added product” is a product to which the manufacturer intentionally introduces mercury, including, but not limited to, electric lamps, thermostats, automotive devices, electric switches, medical or scientific instruments, electric relays or other electrical devices.

The label must clearly inform the purchaser that mercury is present in the product and that the product shall be reused, recycled or properly disposed of as hazardous waste. The label must be constructed of materials that are sufficiently durable to remain legible for the useful life of the product. Manufacturers of products that contain an irremovable mercury-containing lamp used for backlighting shall meet the product labeling requirements of this section by placing the label on the product or its care and use manual. These laws do not apply to the labeling of those products whose only mercury component is a removable mercury-added lamp or button cell battery.

Before a mercury-added product is sold in Massachusetts, the manufacturer must 1) submit a compliant labeling plan to the Massachusetts Department of Environmental Protection, or 2) label the product in compliance with a labeling plan approved by another state that is a member of the Interstate Mercury Education and Reduction Clearinghouse.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that

the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

New York Law (mercury-added products): The labeling of "mercury-added consumer products" must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. ([Environmental Conservation Law § 27-2103](#)). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product.

State Electronic Waste Recycling Laws: Several states, including California, Illinois, New Jersey, New York, Texas, and Washington have electronics takeback laws that apply to certain classes of electronic devices and may include marking requirements (generally just manufacturer and brand).

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

Federal Law:

See the "Batteries" card for further information on regulations applicable to some batteries.

FCC Radio Frequency Devices: See the requirements detailed in the Mandatory Labeling on Product section above.

California Law (battery charging systems):

Note: California requirements for BCS, including labeling, have been preempted by the federal BCS standard so long as the product meets the federal definition of Battery Charging System. See <https://www.energy.ca.gov/programs-and-topics/programs/appliance-efficiency-program-outreach-and-education/federal-battery>.

For BCS that do not meet the federal definition, the battery charger system shall be marked with a "BC" inside a circle. The marking shall be legible and permanently affixed to:

- the product nameplate that houses the battery charging terminal or;
- the retail packaging and, if included, the cover page of the instructions.

[20 CCR § 1607\(b\), \(d\)\(10\)](#).

In addition, if this product contains batteries, please see the corresponding California section of the Batteries card for additional requirements.

Massachusetts Law (mercury-added products): In addition to the label on the product, the packaging for a mercury-added product must also be labeled, except when the product label can easily be viewed through the packaging, to inform prospective purchasers and product users, prior to purchase, that the product contains mercury and will need to be managed properly at the end of its useful life ([MGL 21H, 310 CMR 75](#)). The label must be consistent with the product labeling requirements.

Where labels on the product or product packaging are not clearly visible and legible to prospective purchasers and product users prior to purchase, (e.g., in sales transactions that occur over the internet, telephone or postal service), the manufacturer or retailer must clearly inform the purchaser 1) that the product contains mercury and shall clearly specify that the mercury-added product be reused, recycled or properly disposed of as hazardous waste at the end of the product's useful life 2) as part of the product's description either in the catalog or on the website used to place the online order.

New York (mercury-added consumer products): The labeling of "mercury-added consumer products" must clearly and conspicuously state that mercury is present in the product and the product must not be disposed of or placed in a waste stream destined for disposal in mixed municipal solid waste until the mercury is removed and reused, recycled or otherwise managed to ensure that the mercury does not become part of solid waste or contaminate groundwater. ([Environmental Conservation Law § 27-2103](#)). The labeling must be conspicuous to the consumer prior to purchase, and during the installation and removal of the product, and affixed to the product so as to remain legible for the useful life of the product.

Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?
In which format, do we have to deliver the instruction manual to our customers ?

Federal Law:

FCC Radio Frequency Devices

All "Class B digital devices" (including devices that do not qualify as "intentional radiators") must include the following or a similar statement, which must be placed in a prominent location in the text of the product's manual:

Note: This equipment has been tested and found to comply with the limits for a Class B digital device, pursuant to Part 15 of the FCC Rules. These limits are designed to provide reasonable protection against harmful interference in a residential installation. This equipment generates, uses and can radiate radio frequency energy and, if not installed and used in accordance with the instructions, may cause harmful interference to radio communications. However, there is no guarantee that interference will not occur in a particular installation. If this equipment does cause harmful interference to radio or television reception, which can be determined by turning the equipment off and on, the user is encouraged to try to correct the interference by one or more of the following measures:

- Reorient or relocate the receiving antenna.
- Increase the separation between the equipment and receiver.
- Connect the equipment into an outlet on a circuit different from that to which the receiver is connected.
- Consult the dealer or an experienced radio/TV technician for help. [47 CFR § 15.105\(b\)](#).

Note, however, that certain devices are exempt from this requirement. [47 CFR § 15.103](#). Relevant here, the following exemptions may apply to the Decathlon products in this category:

- Digital devices that have a power consumption not exceeding 6 nW;
- Digital devices in which both the highest frequency generated and the highest frequency used are less than 1.705 MHz and which do not operate from the AC power lines or contain provisions for operation while connected to the AC power lines. Digital devices that include, or make provision for the use of, battery eliminators, AC adaptors or battery chargers which permit operation while charging or that connect to the AC power lines indirectly, obtaining their power through another device which is connected to the AC power lines, do not fall under this exemption.

Warnings - General ones

Are general warnings required ? If yes, which ones ?

General instructions or labels should identify all reasonably foreseeable hazards associated with a product and state the consequences of consumer actions explicitly. See CPSC, [Manufacturer's Guide to Developing Consumer Product Instructions](#) (October 2003).

See the "Electronic equipment with Bluetooth" card for further information on regulations applicable to intentional radiators.

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Illinois Law (lead): No one may sell any lead-bearing substance that may be used by the general public, unless it bears a warning statement as provided by federal law ([410 ILS 45](#)). If no federal rule exists, lead-bearing substances that contain lead-based paint or other form of lead must be labeled as: ""WARNING CONTAINS LEAD. MAY BE HARMFUL IF EATEN OR CHEWED. MAY GENERATE DUST CONTAINING LEAD. KEEP OUT OF THE REACH OF CHILDREN." The warning statement must be located in a prominent place on the item or package, such that consumers are likely to see the statement when it is examined under retail conditions. The statement must be conspicuous and not obscured by other written matter. The statement must be legible and contrast with the typography, layout, and color of the other printed matter. Compliance with [16 CFR 1500.121](#) constitutes compliance with these display requirements. The manufacturer or importer of record is responsible for complying with these requirements. This requirement does not apply to any component part of a consumer electronic product, including, but not limited to, personal computers, audio and video equipment, calculators, wireless phones, game consoles, and handheld devices incorporating a video screen used to access interactive software and their associated peripherals, that is not accessible to a child through normal and reasonably foreseeable use of the product. A component part is not accessible if the component part is not physically exposed by reason of a sealed covering or casing and does not become physically exposed through reasonably foreseeable use and abuse of the product. Paint, coatings, and electroplating, singularly or in any combination, are not sufficient to constitute a sealed covering or casing. Coatings and electroplating are sufficient to constitute a sealed covering for connectors, power cords, USB cables, or other similar devices or components used in consumer electronics products.

"Lead-bearing substance" means any item containing or coated with lead such that the lead content is more than six-hundredths of one percent (0.06%) lead by total weight; or more than 1 milligram per square centimeter in the dried film of paint or previously applied substance.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Decathlon is not required to indicate a target age for these products; however, if the product would be more hazardous for children below a certain age, we recommend stating a minimum age to minimize liability for use by persons below that age.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

Federal Law

Country of Origin Marking Requirements

Failure to adhere to Country of Origin Marking Requirements may result in imposition of an additional 10% duty, withholding of release from U.S. Customs until properly marked, and reimbursement of expenses of customs officials overseeing same.

External Power Supplies

Violation of DOE's requirements for External Power Supplies and/or Battery Charging Systems are punishable with a violation of up to \$440 per violation. [10 C.F.R. § 429.120](#). Each unit distributed will typically be considered a separate violation.

FCC Radio Frequency Devices

The FCC may issue a cease and desist order to any person violating the FCC's radio frequency rules. [47 USC § 312\(b\)](#).

See the "Batteries" card for further information on sanctions related to regulations applicable to some batteries.

California Law Power Supplies and Battery Charging Systems): Violations of the California Appliance Energy Efficiency Regulations, applicable to Power Supplies and Battery Charging Systems, are subject to administrative civil penalties of up to \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#).

Illinois Law (lead): A manufacturer or importer who fails to properly label lead-bearing substances subject to a civil fine between \$50 and \$5,000 per day and could face criminal penalties as well ([410 ILS 45](#)).

Massachusetts Law (mercury-added products): A violation of this law may be punished by a fine of up to \$25,000 and/or imprisonment for up to two years for each violation; or a civil penalty up to \$25,000 for each violation. Each day each violation occur is a separate offense ([MGL 21H](#)).

New York Law (mercury-added products): Violation of New York's mercury-added consumer products labeling rules is punishable by a fine of up to \$100 for the first violation and up to \$500 for additional violations. ([Environmental Conservation Law § 71-2724](#)).

Comments

Comments

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

See the Batteries conformity card for information.

See above for labeling requirements from State electronic recycling laws (generally limited to manufacturer and/or brand information).

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

Relevant Recalls: The following charger/adaptor products have recently been recalled due to fire/electric shock hazards:

- <https://www.cpsc.gov/Recalls/2022/Hyper-Products-Recalls-HyperJuice-Stackable-GaN-USB-C-Chargers-Due-to-Fire-Hazard>
- <https://www.cpsc.gov/Recalls/2021/Belkin-Recalls-Portable-Wireless-Chargers-Stand-Special-Edition-Due-to-Fire-and-Shock-Hazards>
- <https://www.cpsc.gov/Recalls/2021/Towsleys-Recalls-3-in-1-Qi-Wireless-Chargers-Power-Banks-and-Travel-Chargers-Due-to-Fire-Hazard>
- <https://www.cpsc.gov/Recalls/2019/Spansive-Recalls-Wireless-Phone-Chargers-Due-To-Burn-Hazard-Recall-Alert>

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

Federal Law:

See the "Batteries" card for further information on regulations applicable to some batteries.

External Power Supplies "External power supplies" must comply with DOE energy efficiency regulations. See the DOE guidance available [here](#). These standards vary based on energy usage, and are summarized in [10 C.F.R. § 430.32\(w\)](#), also below.

All external power supplies manufactured on or after February 10, 2016, shall meet the following standards:

	Class A EPS	Non-Class A EPS
Direct Operation EPS	Level VI: 10 CFR 430.32(w)(1)(ii)	Level VI: 10 CFR 430.32(w)(1)(ii).
Indirect Operation EPS	Level IV: 10 CFR 430.32(w)(1)(i)	No Standards.

A basic model of external power supply is not subject to these energy conservation standards if the external power supply—

- (i) Is manufactured during the period beginning on February 10, 2016, and ending on February 10, 2020;
- (ii) Is marked in accordance with the External Power Supply International Efficiency Marking Protocol, as in effect on February 10, 2016;
- (iii) Meets, where applicable, the standards under paragraph (w)(1)(i) of this section, and has been certified to the Secretary as meeting those standards; and
- (iv) Is made available by the manufacturer only as a service part or a spare part for an end-use product that—
 - (A) Constitutes the primary load; and
 - (B) Was manufactured before February 10, 2016.

These standards do not constitute an energy conservation standard for the separate end-use product to which the external power supply is connected.

Battery Chargers:

Battery chargers manufactured on or after June 13, 2018, must have a unit energy consumption (UEC) less than or equal to the prescribed "Maximum UEC" standard when using the equations for the appropriate product class and corresponding rated battery energy as shown in the following table:

Product class	Product class description	Rated battery energy (Ebatt**)	Special characteristic or battery voltage	Maximum UEC (kWh/yr) (as a function of Ebatt**)
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1	Low-Energy	d5Wh	Inductive Connection*	3.04
2	Low-Energy, Low-Voltage			$0.1440 * Ebatt + 2.95$
3	Low-Energy, Medium-Voltage		4-10 V	For $Ebatt < 10 \text{ Wh}$ $Ebatt \geq 10 \text{ Wh}$, $0.0255 * Ebatt + 1.16$
4	Low-Energy, High-Voltage		>10 V	$0.11 * Ebatt + 3.18$
5	Medium-Energy, Low-Voltage	100-3000 Wh		$0.0257 * Ebatt + .815$
6	Medium-Energy, High-Voltage		e20V	$0.0778 * Ebatt + 2.4$
7	High-Energy	>3000 Wh		$0.0502 * Ebatt + 4.53$

*Inductive connection and designed for use in a wet environment (e.g. electric toothbrushes).

**Ebatt = Rated battery energy as determined in 10 CFR part 429.39(a).

[10 C.F.R. § 430.2\(z\)](#). These federal standards preempt all state standards. [10 C.F.R. § 430.33](#).

FCC Radio Frequency Devices

All “unintentional radiators” must comply with the general technical requirements of [47 C.F.R. § 15.15](#), as well as the more specific requirements described below. Specifically:

- An unintentional radiator shall be constructed in accordance with good engineering design and manufacturing practice. Emanations from the device shall be suppressed as much as practicable, but in no case shall the emanations exceed the levels specified in FCC’s rules.
- An unintentional radiator must be constructed such that the adjustments of any control that is readily accessible by or intended to be accessible to the user will not cause operation of the device in violation of the regulations
- Parties responsible for equipment compliance should note that the limits specified in this part will not prevent harmful interference under all circumstances. Since the operators of Part 15 devices are required to cease operation should harmful interference occur to authorized users of the radio frequency spectrum, the parties responsible for equipment compliance are encouraged to employ the minimum field strength necessary for communications, to provide greater attenuation of unwanted emissions than required by these regulations, and to advise the user as to how to resolve harmful interference problems (for example, see [§ 15.105\(b\)](#)).

California Law

Batteries and battery charging systems:

California requirements for BCS have been preempted by the federal BCS standard so long as the product meets the federal definition of Battery Charging System. See [10 C.F.R. § 430.33](#) and <https://www.energy.ca.gov/programs-and-topics/programs/appliance-efficiency-program-outreach-and-education/federal-battery>.

For BCS that do not meet the federal definition:

Large battery charger systems (rated input power greater than 2 kW) must meet the following performance values:

Performance Parameter	Standard	
Charge Return	100 percent, 80 percent	CRF d1.10
Factor (CRF)	Depth of discharge	
	40 percent Depth of discharge	CRF d1.15
Power Conversion Efficiency		Greater than or equal to: 89 percent
Power Factor		Greater than or equal to: 0.90
Maintenance Mode Power (Eb = battery capacity of tested battery)		Less than or equal to: 10 + 0.0012Eb W
No Battery Mode Power		Less than or equal to: 10 W

Some small battery charger systems (rated input power of 2 KW or less [including all golf cart BCSs] must meet the following performance values):

Performance Parameter	Standard	
Maximum 24 hour charge and maintenance energy (Wh)	For Eb of 2.5 Wh or less: 16 x N	
(Eb = capacity of all batteries in ports and N = number of charger	For Eb greater than 2.5 Wh and less than or equal to 100 Wh:	

ports)

$$12 \times N + 1.6E_b$$

For E_b greater than 100 Wh and

less than or equal to 1000 Wh:

$$22 \times N + 1.5E_b$$

For E_b greater than 1000 Wh:

$$36.4 \times N + 1.486E_b$$

Maintenance Mode Power and

The sum of maintenance mode power

No Battery Mode Power (W)

and no battery mode power must be

less than or equal to:

(E_b = capacity of all batteries in

$$1 \times N + 0.0021 \times E_b$$

ports and N = number of

charger ports)

A la carte chargers that meet all of the following criteria are not required to meet these performance values:

- a. Provided separately from and subsequent to the sale of small battery charger system manufactured before the effective date of the applicable standard in Section 1605.3(w)(2) (2013 or 2014 depending on battery capacity);
- b. Necessary as a replacement for, or as a replacement component of, such small battery charger system;
- c. Provided by a manufacturer directly to a consumer or to a service or repair facility; and
- d. Is manufactured no more than five years after the effective date in Section 1605.3(w)(2) applicable to the particular small battery charger system for which the à la carte charger is intended as a replacement or replacement component.

[20 CCR § 1605.3\(w\)](#)

Inductive charger systems (small BCSs that transfer power to the charger through magnetic or electric induction) must either:

- Meet the applicable performance standards for small BCSs; or
- Use less than 1 watt in maintenance mode, less than 1 watt in no battery mode, and an average of 1 watt or less over the duration of the charge and maintenance mode test

Battery backups or uninterruptible power supply chargers (small BCSs that are voltage and frequency dependent and designed to provide power to an end use product in the event of a power outage and includes a UPS as defined in IEC 62040-3 ed.2.0) must:

- Consume no more than $0.8 + 0.0021 \times E_b$ watts in maintenance mode, where E_b is the battery capacity in watt-hours.

California Law, Power Supplies:

Per [20 CCR 1604\(u\)](#), (1) The test method for Class A federally regulated external power supplies is 10 C.F.R. section 430.23(bb) (Appendix Z to Subpart B of part 430). (2) The test method for state-regulated external power supplies is US EPA Test Method for Calculating the Energy Efficiency of Single-Voltage External AC-DC and AC-AC Power Supplies dated August 11, 2004, except that the test voltage specified in Section 4(d) of the test method shall be only 115 volts, 60 Hz.

California standards for Power Supplies:

- [20 CCR 1605.1\(u\)](#) and Table U-1 outline the California standard for Class A external power supplies that are federally regulated and manufactured on or after July 1, 2008. Certain exceptions, outlined in 20 CCR 1605.1(u)(1) apply.
- [20 CCR 1605.1\(u\)](#) and Table U-2 outline the California standard for direct operation external power supplies manufactured on or after February 10, 2016. Certain exceptions, outlined in 20 CCR 1605.1(u)(1)(D) apply.

- [20 CCR 1605.3\(u\)](#) and Table U-3 outline the California standard for State-Regulated External Power Supplies (Effective January 1, 2007) for external power supplies used with laptop computers, mobile phones, printers, print servers, scanners, personal digital assistants (PDAs), and digital cameras.

- [20 CCR 1605.3\(u\)](#) and Table U-4 outline the California Standard for State-Regulated External Power Supplies Effective July 1, 2008

California Perchlorate Regulations: Also packages that contain perchlorate materials must be designed and constructed such that under conditions normally incident to handling, there will be no release of perchlorate materials into the environment; and must be water resistant. [Cal. Code Regs §§ 67384.1 – 67384.10](#).

Maine Regulations:

Rechargeable consumer products:

1. Nonremoveable battery requirements. A person may not sell, distribute or offer for sale in this State any product powered by a rechargeable battery primarily used or purchased to be used for personal, family or household purposes unless:

A. The battery may be easily removed by the consumer or is contained in a battery pack that is separate from the product and may be easily removed; and

B. The product, the battery itself and the package containing the product are all labeled, in a manner that is clearly visible to the consumer, indicating that the battery must be recycled or disposed of properly and that the type of electrode used in the battery is clearly identifiable

[ME Stat. Tit. 38, §2166](#).

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards

may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

Federal Law:

FCC Radio Frequency Devices

In addition to the general requirements listed above, the following requirements apply to unintentional radiators:

- Unintentional radiators must comply with the “conducted limits” set forth in [47 C.F.R. § 15.107](#).
- Unintentional radiators must comply with the “radiated emissions limits” set forth in [47 C.F.R. § 15.109](#).
- Unintentional radiators must comply with the “antenna power conduction limits for receivers” set forth in [47 C.F.R. § 15.111](#).

Note, however, that certain devices are exempt from this requirement. [47 CFR § 15.103](#). Relevant here, the following exemptions may apply to the Decathlon products in this category:

- Digital devices that have a power consumption not exceeding 6 nW;
- Digital devices in which both the highest frequency generated and the highest frequency used are less than 1.705 MHz and which do not operate from the AC power lines or contain provisions for operation while connected to the AC power lines. Digital devices that include, or make provision for the use of, battery eliminators, AC adaptors or battery chargers which permit operation while charging or that connect to the AC power lines indirectly, obtaining their power through another device which is connected to the AC power lines, do not fall under this exemption.

Electrical aspects

What are requirements regarding electrical aspects ?

Relevant Recalls: The following charger/adaptor products have recently been recalled due to fire/electric shock hazards:

- <https://www.cpsc.gov/Recalls/2022/Hyper-Products-Recalls-HyperJuice-Stackable-GaN-USB-C-Chargers-Due-to-Fire-Hazard>
- <https://www.cpsc.gov/Recalls/2021/Belkin-Recalls-Portable-Wireless-Chargers-Stand-Special-Edition-Due-to-Fire-and-Shock-Hazards>
- <https://www.cpsc.gov/Recalls/2021/Towsleys-Recalls-3-in-1-Qi-Wireless-Chargers-Power-Banks-and-Travel-Chargers-Due-to-Fire-Hazard>
- <https://www.cpsc.gov/Recalls/2019/Spansive-Recalls-Wireless-Phone-Chargers-Due-To-Burn-Hazard-Recall-Alert>
-

Inflammability

Are there any specific requirements to ensure inflammability?

None identified.

Hygiene

What are the rules regarding hygiene ?

None identified.

Radioactivity

What are the rules regarding radioactivity ?

None identified.

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

Products making noise

What are the requirements regarding products making noise ?

None identified.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

Batteries (general): If this product contains batteries, please see the corresponding section of the Batteries card for additional requirements.

Based on our understanding of Decathlon's products in this category, these will all be excluded from California's RoHS-like legislation because they do not have screens greater than four inches in size (measured diagonally), do not have playback functionality, and are not a Cathode Ray Tube device, computer, peripheral, television, or printer. However, if any of the electronic products within this category might fall into one of these categories, they may be subject to RoHS-like restrictions in California.

California Law (PBDEs):

California prohibits the manufacturing, processing or distributing in commerce of any product, or a flame-retardant part of a product, containing more than one-tenth of 1 percent of (a) pentabrominated diphenyl ether or any technical mixture in which pentabrominated diphenyl ether is a predominate congener, or (b) octabrominated diphenyl ether or any technical mixture in which octabrominated diphenyl ether is a predominate congener. [CA Health and Safety Code § 108920 – 108923](#).

California Law (Proposition 65):

Proposition 65 warnings. If a product would expose a person to a Proposition 65 listed chemical above a safe harbor level (referred to as a “no significant risk level” or “NSRL” for chemicals listed as carcinogens or a “maximum allowable dose level” or “MADL” for reproductive toxicants), Proposition 65 requires a business to provide a clear and reasonable warning prior to such exposure. The recently amended warning regulations make clear that warnings must be product specific, and for remote purchases such as online or catalog sales, the warnings must be conveyed prior to completion of the purchase.

Proposition 65 Chemicals. Commonly targeted chemicals under Proposition 65 include:

- Phthalates (DEHP, DINP, DBP, BBP, DnOP, DIDP and DNHP);
- Lead;
- Cadmium;
- Bisphenol A (BPA);
- Tris(1,3-dichloro-2-propyl) phosphate (TDCPP) (generally used as a flame retardant);
- Tris(2-chloroethyl) phosphate (TCEP);
- Cocamide diethanolamine (Cocamide-DEA, a surfactant for formulated products); and
- Styrene (styrene warning requirements effective April 2017).

A full list of Proposition 65 chemicals is available here: http://oehha.ca.gov/prop65/prop65_list/Newlist.html

Note with regard to the following materials that:

- softened PVC plastics and vinyl may contain listed phthalates;
- epoxy resins and polycarbonate plastic may contain BPA (thermal receipt paper may also contain BPA);
- brass and other composite metals may contain lead;
- brightly colored yellow plastics may contain cadmium; and
- foam padding used in child care articles, mats and mattresses may contain the flame retardants TDCPP or TCEP.

Proposition 65 Warning Language:

The following Proposition 65 warnings are acceptable:

[For equilateral triangle symbols referenced below, see <https://www.p65warnings.ca.gov/warning-symbol>]

a. Warning for exposure to chemicals listed as carcinogens:

[equilateral yellow triangle symbol with exclamation point] WARNING: this product can expose you to chemicals including [name of at least one chemical], which is known to the State of California to cause cancer. For more information go to www.P65warnings.ca.gov.

b. Warning for exposure to chemicals listed as reproductive toxicants:

[equilateral yellow triangle symbol with exclamation point] WARNING: this product can expose you to chemicals including [name of at least one chemical] which is known to the State of California to cause birth defects or other reproductive harm. For more information go to www.P65warnings.ca.gov.

c. Warning for exposure to chemicals listed as carcinogens and chemicals listed as reproductive toxicants:

[equilateral yellow triangle symbol with exclamation point] WARNING: this product can expose you to chemicals including [name at least one chemical], which is known to the State of California to cause cancer, and [insert name of at least one chemical], which is known to the State of California to cause birth defects or other reproductive harm. For more information go to www.P65warnings.ca.gov.

d. Warning for exposure to a chemical that is listed as both a carcinogen and a reproductive toxicant:

[equilateral yellow triangle symbol with exclamation point] WARNING: this product can expose you to chemicals including [name of chemical], which is known to the State of California to cause cancer and birth defects or other reproductive harm. For more information go to www.P65warnings.ca.gov.

Additional guidance regarding Proposition 65 warnings: In general, consumer product exposure warnings must be prominently displayed on a label, labeling, or sign, and must be displayed with such conspicuousness as compared with other words, statements, designs or devices on the label, labeling, or sign, as to render the warning likely to be read and understood by an ordinary individual under customary conditions of purchase or use. If other product information on the product is provided in numerous languages, the Proposition 65 warning must also be provided in those languages.

Methods of Transmission: The following methods are acceptable for providing a Proposition 65 warning:

(a) Store Purchases

- (1) A product-specific warning provided on a posted sign, shelf tag, or shelf sign, for the consumer product at each point of display of the product.
- (2) A product-specific warning provided via any electronic device or process that automatically provides the warning to the purchaser prior to or during the purchase of the consumer product, without requiring the purchaser to seek out the warning.
- (3) A label that complies with the content requirements in Section 25603(a) (see above section on Proposition 65 Warning Language).
- (4) A short-form warning on the product label that complies with the content requirements in Section [25603\(b\)](#), which allows for an abbreviated warning, without identification of the particular chemical(s). A short-form warning requires the following: The triangle symbol required above; (2) The word "WARNING:" in all capital letters, in bold print; (3) For exposures to listed carcinogens, the words, "Cancer - www.P65Warnings.ca.gov"; (4) For exposures to listed reproductive toxicants, the words, "Reproductive Harm - www.P65Warnings.ca.gov"; and (5) For exposures to both listed carcinogens and reproductive toxicants, the words, "Cancer and Reproductive Harm - www.P65Warnings.ca.gov." A person providing a short-form warning on the product label is not required to include within the text of the warning the name or names of a listed chemical.

However, in 2021, California's Office of Environmental Health Hazard Assessment ("OEHHA") proposed changes to the above safe harbor warning regulations that would severely restrict and change the availability of the short-form warning, including the requirement to list specific chemicals included in the Project and limitations on how small a physical label must be to use the short-form warning. The proposal has yet to go into effect.

"Label" is defined to include written, printed or graphic material that is printed on or affixed to a product or its immediate container or wrapper.

The entire on-product warning must be in a type size no smaller than the largest type size used for other consumer information on the product, and in no case shall the warning appear in a type size smaller than 6-point type.

(b) For internet purchases, a warning that complies with the content requirements of Section 25603(a) must be provided by including either the warning or a clearly marked hyperlink using the word "WARNING" on the product display page, or by otherwise prominently displaying the warning to the purchaser prior to completing the purchase. If an on-product warning is provided pursuant to Section 25602(a)(4), the warning provided on the website may use the same content as the on-product warning. For purposes of this subarticle, a warning is not prominently displayed if the purchaser must search for it in the general content of the website.

(c) For catalog purchases, the warning must be provided in the catalog in a manner that clearly associates it with the item

being purchased. If an on-product warning is being provided pursuant to Section 25602(a)(4), the warning provided in the catalog may use the same content as the on-product warning.

Statute: Health & Saf. Code § 25249.6

Regulations: 27 CCR §§ 25600 et seq.; 11 CCR § 3000 et seq.

Illinois Law (flame retardants): The manufacture and distribution of products or flame-retarded parts of products containing more than 0.001% of pentaBDE (pentabromodiphenyl ether) or octaBDE (octabromodiphenyl ether) is prohibited in Illinois ([410 ILCS 48](#)).

Illinois Law (electronics): The following is not a chemical restriction; just a disclosure requirement. Each year, manufacturers of covered electronic equipment (see Definitions section), including computers and tablets, computer monitors, printers, televisions, electronic keyboards, facsimile machines, videocassette recorders, portable digital music players, digital video disc players, video game consoles, electronic mice, scanners, digital converter boxes, cable receivers, satellite receivers, digital video disc recorders, or small-scale servers in this State must register with the Agency. The registration must be submitted in the form and manner required by the Agency and must include a statement disclosing whether any of the covered devices exceed the maximum concentration values established for lead, mercury, cadmium, hexavalent chromium, polybrominated biphenyls (PBBs), and polybrominated diphenyl ethers (PBDEs) under the RoHS (restricting the use of certain hazardous substances in electrical and electronic equipment) Directive 2002/95/EC of the European Parliament and Council and any amendments thereto and, if so, an identification of the aforementioned electronic device that exceeds the directive. [415 ILCS 150/30](#).

Maine Law (flame retardants): The Residential Upholstered Furniture Law prohibits companies from selling upholstered furniture containing over 0.1% by weight of flame retardant chemicals.

Maine Law (PBDEs): Maine prohibits anyone from manufacturing, selling, or offering general household products in Maine that fulfill the following requirements:

- a. Products containing more than 0.1% by weight of the “penta” or “octa” mixtures of PBDEs
- b. Mattresses or upholstered furniture that have plastic fibers containing the “deca” mixture of PBDEs
- c. Televisions or computers that have a plastic housing containing the “deca” mixture of PBDEs

Maine Law (toxic chemicals): The Maine Department of Environmental Protection classifies toxic chemicals contained in children's products into three tiers under the Toxic Chemical in Children's Products Law:

- Chemicals of Concern
- Chemicals of High Concern
- Priority Chemicals

The prioritization level increases on each tier. The list of Chemicals of Concern currently contains around 1,400 compounds of toxic chemicals that existed in consumer products. From this list, the Department picks out chemicals of high concern to further study and review their toxicity. Chemicals may be elevated to [priority chemical](#) status which results in regulatory action.

Currently, manufacturers of children's products containing substances from the list of Priority Chemicals are required to report to the Maine Department of Environmental Protection.

Chapter 1699 of Toxic Chemicals in Children's Products Law requires that manufacturers selling children's products containing any of Maine's priority chemicals in an amount greater than the “De Minimis” must report to the Maine Department of Environmental Protection within 30 days before selling the products in Maine, and create a Certificate of Compliance.

According to the definition in this section, “De Minimis” of a high concern chemical means:

- a. The practical quantification limit of a chemical that is intentionally added to a children's product, which might vary according to the chemical
- b. A contaminant with a concentration higher than 100 parts per million present in a children's product

Currently, there are 9 categories of substances in the list of [Priority Chemicals](#). Manufacturers selling children's products containing these substances must report to the Maine Department of Environmental Protection:

- [Phthalates](#)
- [Bisphenol A](#)
- Arsenic
- Cadmium
- Flame Retardants
- Formaldehyde
- Mercury
- PFOS
- Nonylphenol and Nonylphenol Ethoxylates

Manufacturers or distributors should provide the following information when requested:

- a. Certificates of Compliance attesting that the children's product does not contain the priority chemical, or
- b. A list of the names and addresses of the persons (i.e. distributors, sellers, resellers, etc.) who are selling the products if the products are deemed to be non-compliant by the department

Manufacturers or distributors selling children's products in Maine must conduct chemical tests on their products and make sure whether their products contain either one of the 9 substances in the list of Priority Chemicals.

Maine Law (PFAS):

This act phases in the requirements for the prohibition of Perfluoroalkyl and Polyfluoroalkyl Substances (PFAS) in consumer products sold in Maine.

The first phase, initiated on 1 January 2023, requires manufacturers who intentionally add PFAS to their products must report to the Maine Department of Environmental Protection, providing the following information:

- a. Product description
- b. An explanation of why the PFAS are used in the product and which product components the PFAS are used
- c. The amount of each of the PFAS used in the products identified by its chemical abstracts service registry number. The amount can be expressed in an exact quantity or a range
- d. Manufacturer's information such as the name, address, contact person, and phone number
- e. Any additional information if necessary

At the same time, also effective January 1, 2023, this act prohibits the sales of carpets or rugs that contain intentionally- added PFAS.

The last stage of this act, effective from January 1, 2030, is the implementation of a complete prohibition of the use of PFAS on other consumer products. This means that the use of PFAS is permanently disallowed after that date.

You can find more information and FAQs on the Act [here](#).

Maine Law (lead): Section 1316, Chapter 252 of the Lead Poisoning Control Act prohibits companies from using or applying lead-based substances (e.g. paint, adhesive, polishing) to the following articles:

- a. Interiors and fixtures of the dwelling, residential child-care facility, or preschool facility
- b. Toys
- c. Household furniture

Section 1316A, Chapter 252 prohibits companies from manufacturing, selling, or distributing children's products and toys containing more than 0.009% of lead by total weight.

The above lead content requirement only applies to the base material of a product or product component. It does not apply to the paint or surface coating of the product.

This section applies to categories of products are intended to be used by children under the age of 12 years old.

Massachusetts Law (lead): One may not apply any lead-based paint, glaze, or other substance to any toy; furniture; cooking, drinking, or eating utensil ([MGL 111.196](#), [105 CMR 460](#)). In addition, one may not sell any toy; furniture; cooking, drinking, or eating utensil to which a lead-based paint, glaze, or other substance has been applied . A paint, glaze, or other substance is lead-based when it contains more than 0.0006% lead by weight.

Massachusetts Law (banned hazardous substances): No one may sell or deliver any banned hazardous substance ([MGL 94B § 3](#)).

New York Law (flame retardants): It is unlawful to manufacture or sell "a product, or a flame-retardant part of a product, containing more than one-tenth of one per centum of pentabrominated diphenyl ether or octabrominated diphenyl ether, by mass." ([Environmental Conservation Law art 37, § 37-0111\(1\)](#)).

New York Law (electronics): The following is not a chemical restriction; just a disclosure requirement. As a condition of selling covered electronic products (see Definitions section) in the state of New York, a manufacturer must submit a registration on a form prescribed by the state, along with a registration fee of five thousand dollars. The registration shall include a statement disclosing whether: (i) any covered electronic device sold in this state exceeds the maximum concentration values established for lead, mercury, cadmium, hexavalent chromium, polybrominated biphenyls (PBBs), and polybrominated diphenyl ethers (PBDEs) under the restriction of hazardous substances directive (RoHS) pursuant to 2002/95/EC of the European Parliament and Council and any amendments thereto and if so, a listing of any covered electronic equipment that is not in compliance with such directive; or (ii) the manufacturer has received an exemption from one or more of those maximum concentration values under the RoHS directive that has been approved and published by the European Commission. [NY ECL § 27-2605\(f\)](#).

Washington Law (PBDE ban): No one may manufacture, sell, or distribute a noncombustible product in Washington that contains PBDEs (polybrominated diphenyl ethers) ([RCW 70.76](#)). A noncombustible product means "inedible." PBDEs are defined as chemical forms that consist of diphenyl ethers bound with bromine atoms, including, but not limited to, three primary

forms of the commercial mixtures known as pentabromo diphenyl ether (penta-bde), octabromo diphenyl ether (octa-bde), and decabromo diphenyl ether (deca-bde). There are several exemptions to the PBDE ban that are likely not relevant to most Decathlon products, including medical devices and mechanized boats. Manufacturers of products containing PBDEs must notify sellers of the products of this law.

Washington Law (Phthalates): While not a binding law, Washington has a draft Phthalates Action Plan to identify the potential health and environmental effects of phthalate chemicals and recommend strategies to reduce or eliminate those impacts in Washington. Please see [this website](#) for more information and recent activity.

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

Federal Law: None identified.

California Law:

CA Toxics in Packaging Prevention Act

The California Toxics in Packaging Prevention Act, [Cal. Health & Safety Code §§ 25214.11---25214.26](#), prohibits the production, sale, or promotion of packages or packaging components in which any of the metals cadmium, lead, mercury, or hexavalent chromium either (a) have been intentionally introduced, or (b) have a combined incidental presence greater than 100 parts per million by weight. A “package” is defined as any container providing a means of marketing, protecting, or handling a product, including unsealed receptacles such as crates, cups, wrapping films, and bags. A “packaging component” is defined as any individual assembled part of a package, including blocking, bracing, cushioning, weatherproofing, exterior strapping, coatings, closures, inks, labels, dyes, pigments, adhesives, stabilizers, or any other additives. [Id. § 25214.12](#).

The Toxics in Packaging Prevention Act distinguishes between “manufacturers” of packages and packaging components, versus “purchasers” who purchase and take title to a package or packaging component for the purpose of packaging a product manufactured, distributed, or sold by the purchaser. [Id. § 25214.12](#). Decathlon would be a “purchaser” under this law. Packaging manufacturers are required to provide a Certificate of Compliance to the purchaser of the packaging stating that the package or packaging component is in compliance with the Toxics in Packaging Prevention Act. If the manufacturer does not provide a Certificate of Compliance, the purchaser must request it. Purchasers are required to retain Certificates of Compliance for as long as a package or packaging component is being used. DTSC may request these from purchasers at any time. [Id. § 25214.16](#); see DTSC Fact Sheet, [Toxics in Packaging: Information for Purchasers of Packaging](#) (Jan. 2009).

Penalties. Violations of the CA Toxics in Packaging Prevention Act, [Cal. Health & Safety Code §§ 25214.11---25214.26](#), are subject to administrative penalties, [id. § 25187](#), and civil penalties for intentional or negligent violations of \$25,000 per separate violation or per day of a continuing violation, [id. § 25189](#). Knowing and intentional violations are punishable by a criminal fine of not less than \$5,000 nor more than \$100,000, by imprisonment for not more than one year, or by both the fine and imprisonment. [Id. § 25214.22.1](#). Purchasers of packaging who offer their own products for sale in packaging that violates this law may assert an affirmative defense that they relied on a Certificate of Compliance from the packaging manufacturer, had no reason to know the packaging was not in compliance, and took immediate corrective action upon receiving a notice of violation from DTSC. This affirmative defense is not available if a purchaser has already been found in violation at least two times in the preceding three years. [Id. § 25214.22](#).

CA Rigid Plastic Packaging Container Program

The California Rigid Plastic Packaging Container Program, [14 CCR §§ 17943–17949](#), requires product manufacturers who sell products held in RPPCs to meet one of several compliance options. “Rigid plastic packaging container” (RPPC) generally means a plastic packaging container that is made entirely of plastic (except for incidental portions of the packaging), has a relatively inflexible shape or form, has a capacity between 8 ounces and 5 gallons, and is capable of at least one closure. Compliance options include:

- Making the RPPC with at least 25% post-consumer material;
- Reducing the RPPC’s weight by at least 10%, including relative to similar packaging;
- Concentrating the [formulated] product held in the RPPC by at least 10%;
- Establishing that the RPPC is routinely reused at least 5 times;

- Establishing that the RPPC is routinely returned and refilled at least 5 times; or
- Establishing that the RPPC is recycled at least 45% of the time.

Container manufacturers are required to provide product manufacturers a certification of compliance for any RPPCs sold. Product manufacturers known or found to use RPPCs receive a 90-day notice from CalRecycle of registration requirements. If CalRecycle selects a product manufacturer for the compliance certification process, the manufacturer will receive a one-year notice of certification requirements (meaning, you would be notified a year ahead that you would need to certify compliance in the following calendar year). See CalRecycle, [California's Rigid Plastic Packaging Container \(RPPC\) Program](#) (Dec. 2015).

Penalties. Under the California RPPC Program, [14 CCR §§ 17943–17949](#), non-compliant product manufacturers may be assessed penalties of up to \$100,000. Violations may include, but are not limited to, failure to submit all required information, submitting incomplete information, or failing to comply with the law. Under the law, there is a three phase approach: (1) companies may be contacted by DTSC requesting that they register; (2) a small subset of the registered companies will receive a notice that they may be required to certify compliance the following calendar year; (3) a smaller subset of the notified companies will actually have to certify compliance with the CA RPPC requirements. Note: per [CalRecycle's webpage](#), have been no enforcement actions under this law since 2005.

CA Biodegradability Claims

[Cal. Pub. Res. Code §§ 42355–42358.5](#) restricts the use of “biodegradable,” “compostable,” and related claims about any plastic products or plastic packaging. It is unlawful to sell any product or packaging made of plastic — alone or in combination with other material — that is labeled “compostable,” “marine degradable,” “biodegradable,” “degradable,” “decomposable,” or in any other way implies that the item will break down, fragment, biodegrade, or decompose in a landfill or any other environment, unless the plastic product or plastic packaging meets the applicable standard of the following:

- ASTM D6400 for compostable plastics; or
- ASTM D6868 for biodegradable plastics used as coatings on paper and other compostable substrates.

See California State Attorney General, [Quick Reference Guide to “Biodegradable,” “Compostable,” and Related Claims on Plastic Products in California](#) (Dec. 2012).

Penalties (CA Biodegradability Claims): Violations of [Cal. Pub. Res. Code §§ 42355–42358.5](#) are subject to civil penalties of \$500 for the first violation of this chapter, \$1,000 for the second violation, and \$2,000 for the third and any subsequent violation.

CA Extended Producer Responsibility

On June 30, 2022, the governor signed [SB 54 \(Allen, Chapter 75, Statutes of 2022\)](#) that requires by 2032:

- 100% of packaging in the state to be recyclable or compostable
- 25% cut in plastic packaging
- 65% of all single-use plastic packaging be recycled

To stay informed on the latest information on the Packaging EPR rulemaking process and issues, sign-up for email updated by joining the [SB 54: Plastic Pollution Prevention and Packaging Producer Responsibility Act \(Packaging EPR\) listserv](#) or visit [this webpage](#).

Penalties. The department may issue a notice of violation to, and impose an administrative civil penalty not to exceed fifty thousand dollars (\$50,000) per day per violation on, any entity not in compliance with this chapter or any of the regulations the department adopts to implement this chapter, unless the entity meets the criteria of paragraph (5) of subdivision (a) of Section 42061, in which case the civil penalty shall not exceed twenty-five thousand dollars (\$25,000) per day per violation. Before determining whether to assess a penalty, the department may allow a producer or a PRO to develop and submit a corrective action plan to the department detailing how and when the producer or PRO will come into compliance. Cal. Pub. Res. Code § [42081](#).

Illinois Law

IL Heavy Metals in Packaging (SCOPE): A "package" means a container providing a direct means of marketing, protecting, or handling a product, and includes a product unit package, an intermediate package, or a shipping container as defined by ASTM D996 ([415 ILCS 5/21.5](#)). "Package" also includes such unsealed consumer product receptacles as carrying cases, crates, cups, pails, rigid foil and other trays, wrappers and wrapping films, bags, and tubs. "Packaging component" means any individual assembled part of a package including, but not limited to, any interior or exterior blocking, bracing, cushioning, weatherproofing, coatings, closure, ink, and labeling; except that coatings shall not include a thin tin layer applied to base steel or sheet steel during manufacturing of the steel or package ([415 ILCS 5/21.5](#)).

(PROHIBITION/REQUIREMENTS): No product may be offered for sale by its manufacturer or distributor in Illinois in a package that includes any ink, dye, pigment, adhesive, stabilizer, or other additive that contains lead, cadmium, mercury, or hexavalent chromium that has been intentionally introduced during manufacturing or distribution ([415 ILCS 5/21.5](#)). In addition, no package, packaging component, or product in a package may be offered for sale if the sum of the concentration levels of lead, cadmium, mercury, or hexavalent chromium present in the package or packaging component exceeds 100 ppm by weight. Packaging components including strapping, seals, fasteners, and other industrial packaging components intended to protect, secure, close, unitize, or provide pilferage protection for a product destined for commercial use are excluded from this regulation. The manufacturer or supplier of the packaging must provide the package's distributor with a certificate of compliance stating that a package or packaging component complies with these requirements.

Penalties: Violators may be subject to a civil penalty up to \$50,000 for the violation and an additional civil penalty up to \$10,000 per day during which the violation continues ([415 ILCS 5/42](#)).

Maine Law

Reduction of Toxics in Packaging

"Package" means a container used in marketing, protecting or handling a product. "Package" includes a unit package and a shipping container defined by the American Society for Testing and Materials in its annual book of standards as ASTM, D996; a food package; and unsealed receptacles such as carrying cases, crates, cups, pails, rigid foil and other trays, wrappers and wrapping films, bags and tubs.

"Packaging component" means any individual assembled part of a package such as, but not limited to, any interior or exterior blocking, bracing, cushioning, weatherproofing, exterior strapping, coatings, closures, inks and labels. Tin-plated steel that meets the American Society for Testing and Materials specification A-623 must be considered as a single package component. Electrogalvanized coated steel and hot-dipped coated galvanized steel that meets the American Society for Testing and Materials specifications A-525 and A-879 must be treated in the same manner as tin-plated steel.

The act restricts the concentration levels of the following heavy metals contained in the packaging and packaging components to be less than 0.01% by weight:

- Lead
- Mercury
- Cadmium
- Hexavalent chromium

This act prohibits sales of food packaging containing phthalates and PFAS in Maine. This requirement does not apply to manufacturers of food or beverage products that have annual national sales of all food and beverage products of less than one billion dollars.

A manufacturer that is exempted from the phthalates and PFAS prohibition must submit a written request to the Department of Environmental Protection explaining that he or she fulfills the exemption requirements in this section.

The Department will decide whether they approve the exemption or not. A 2-year exemption may be granted to the qualified manufacturer. [32 M.R.S. 1733](#).

Penalties. Any manufacturer or supplier that violates the law could face a \$100 fine for each package or packaging component in violation. [32 M.R.S. 1736](#).

Coding of Plastic Containers

No person may distribute, sell, or offer for sale in Maine any plastic bottle or rigid plastic container without a molded, imprinted, or raised label indicating the type of plastic resin used to produce the plastic bottle or rigid plastic container. [32 M.R.S. § 1722](#).

Penalties: A violation shall be a civil violation for which forfeiture of not more than \$100 may be adjudged. Each container in violation constitutes a separate offense. [26 M.R.S. § 1725](#).

Maine Law (Extended Producer Responsibility Bill): Maine has established a [stewardship program for packaging](#). Producers of products will pay into a fund based on the amount and the recyclability of packaging associated with their products. These funds will be used to reimburse municipalities for eligible recycling and waste management costs, make investments in recycling infrastructure, and help Maine citizens understand how to recycle. This program's purpose is to reduce the volume and toxicity and increase the recycling of packaging material. It will provide support to municipalities in their recycling efforts and in doing so improve recycling outcomes for packaging material in Maine.

Massachusetts Law

MA Plastic Containers: No person may distribute or sell any plastic bottle or rigid plastic container in MA unless such product is labeled with a code indicating the plastic resin used to produce the bottle or container placed within a triangle of arrows ([MGL 94 § 323A](#)). "Rigid plastic container" includes any formed or molded container, other than a bottle, intended for single use, composed predominantly of plastic resin and having a relatively inflexible finite shape or form with a capacity of eight ounces or more but less than five gallons. "Plastic bottle" is defined as plastic container that has a neck that is smaller than the body of the container, accepts a screwtype, snap cap or other closure and has a capacity of sixteen fluid ounces or more, but less than five gallons ([MGL 94 § 321](#)).

Penalties (MA Plastic Containers): Violators are subject to a civil penalty up to \$1,000 for each violation ([MGL 94 § 327](#)).

New Jersey Law:

NJ Hazardous Packaging: Under New Jersey's hazardous packaging law, is unlawful to offer a product for sale in a package where the package or any of its packaging components, inks, dyes, pigments, adhesives, stabilizers or any other additives contain any lead, cadmium, mercury, or hexavalent chromium that (a) has been intentionally introduced during manufacturing or distribution, or (b) is incidentally present in excess of 100 parts per million by weight (0.01%). ([N.J.S.A § 13:1E-99.47](#)). New Jersey package manufacturers are required to provide certificates of compliance to product manufacturers such as Decathlon; Decathlon must retain this certificate so long as the product is in use. ([N.J.S.A § 13:1E-99.51](#)). It is a defense if Decathlon relies on the written assurance of the packaging manufacturer or distributor (signed by an authorized representative of the manufacturer or distributor) that the packaging complies with New Jersey's hazardous packaging law. ([N.J.S.A § 13:1E-99.54](#)).

Penalties: Violation of New Jersey's hazardous packaging law carries a fine of up to \$25,000 per day. ([N.J.S.A § 13:1E-99.53](#), [N.J.S.A §13:1E-99.54](#)).

New York Law:

NY Hazardous Packaging. Under New York's hazardous packaging law, is unlawful to offer any product for sale in a package where the package or any of its packaging components, inks, dyes, pigments, adhesives, stabilizers or any other additives contain lead, cadmium, mercury or hexavalent chromium in excess of 100 parts per million by weight (0.01%). ([Environmental Conservation Law art 37, §37-0205](#)). Note that it is a defense to any claim that Decathlon has violated New York's hazardous packaging law to show that Decathlon relied in good faith on the written assurance of the packaging manufacturer that the packaging met the requirements of New York's packaging law. This written assurance must be in the form of a certificate of compliance stating that the packaging is in compliance with Title 2 of Article 37 of the Environmental Conservation Law, and must also be signed by an authorized official from the packaging company.

Penalties: The first violation of New York's hazardous packaging law is punishable by a civil penalty not to exceed \$10,000; second and subsequent violations can result in fines up to \$25,000 for each violation. ([Environmental Conservation Law art 37, § 37-0201](#)).

Texas Law: No packaging specific requirements identified.

Washington Law:

WA Rigid Plastic Containers and Bottles: Rigid plastic containers and plastic bottles sold in Washington must be labeled with the resin type within triangular arrows ([RCW 70.95F](#)). Plastic is defined as material made of polymeric organic compounds and additives that can be shaped by flow. Rigid plastic container is a formed or molded container, other than a bottle, intended for single use, composed predominantly of plastic resin, and having a relatively inflexible shape or form with a capacity 8 ounces to five gallons. A plastic bottle is a plastic container intended for single use that has a neck that is smaller than the body of the container, accepts a screw-type cap, snap cap, or other closure and has a capacity between 16 fluid ounces and five gallons.

Penalty (WA Rigid Plastic): One who sells a plastic bottle or rigid plastic container without appropriate labeling is subject to a civil penalty of \$50 for each violation, with a maximum of \$500 ([RCW 70.95F](#)). The seller may also be enjoined from continuing violations. Each distribution constitutes a separate offense.

WA Heavy Metals in Packaging: Packages and packaging components must contain less than 100 ppm of lead, cadmium, mercury, and hexavalent chromium ([RCW 70.95G](#)). The limit applies only if the metals were intentionally introduced as elements during manufacturing or distribution. Manufacturers must develop a certificate of compliance stating that its package or packaging component is in compliance with the metal requirements. Manufacturers must keep these certificates three years after the package's last sale or distribution, and certificates must be provided to the Washington Department of Ecology upon request.

Penalties (WA Heavy Metals Packaging). The Department of Ecology may prohibit the sale of any package for which a manufacturer has failed to respond to a request for a certificate of compliance within sixty days ([RCW 70.95G](#)).

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

Federal Law:

Battery Chargers and EPS: DOE does not require that energy efficiency testing for "external power supplies" or "battery chargers" be performed in a specific lab.

FCC Radio Frequency Devices

Depending on the type of FCC equipment authorization applicable to the device (see the "Certifications/Registrations" section), different testing may be required. [FCC's "Equipment Authorization" webpage](#) provides general guidance, and a useful overview of its different authorization programs.

Unless they are considered "intentional radiators," Decathlon products will likely only require compliance with SDoC procedures. [47 CFR § 15.101](#). Equipment approved using SDoC is required to be tested, however, it is not necessary to use an FCC-recognized accredited testing laboratory. However, as minimum the testing laboratory used is required to maintain a record of the measurement facilities as specified in [Section 2.948](#) and a record of the measurements made as specified in [Section 2.938](#).

California Law:

Battery Chargers:

Note: California requirements for BCS have been preempted by the federal BCS standard so long as the product meets the federal definition of Battery Charging System. See <https://www.energy.ca.gov/programs-and-topics/programs/appliance-efficiency-program-outreach-and-education/federal-battery>.

For BCS that do not meet the federal definition: Required test methods for small and large battery charger systems can be found at [20 CCR § 1606\(w\)](#). Testing for certification must be conducted through a listed [approved laboratory](#). For more information, see CA Energy Commission's [website](#).

California Proposition 65: Proposition 65 does not require testing, however, if a company is aware that a listed chemical is present and wishes to determine that a warning label is not required (i.e., to justify a decision not to provide a warning), testing may be conducted at any outside laboratory that is familiar with Proposition 65.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

For penalties associated with packaging violations, please see the packaging technical requirements section above.

Federal Law:

Violation of DOE's requirements for "battery chargers" and "external power supplies" is punishable with a violation of up to \$440 per violation. [10 C.F.R. § 429.120](#). Each unit distributed will typically be considered a separate violation.

FCC Radio Frequency Devices

The FCC may issue a cease and desist order to any person violating the FCC's radio frequency rules. [47 USC 312\(b\)](#).

In addition, the act of selling or leasing, offering to sell or lease, or importing a digital device that has not gone through the appropriate FCC equipment authorization procedure that is a violation of the Commission's rules and federal law, and may be subject to:

- Forfeiture of all non-compliant equipment
- An administrative fine of up to 10,000/day per violation
- Up to \$100,000/\$200,000 criminal penalty for an individual/ organization
- A criminal fine totaling twice the gross gain obtained from sales of the non-compliant equipment

Other than knowing and willful or repeated violations, most violations are settled via a negotiated civil penalty. See recent settlements for FCC enforcement actions related to radio frequency devices here: <http://transition.fcc.gov/eb/marketing/>.

For sanctions applicable to products that contain batteries, please see the "Batteries" card.

California Law:

Any person who violates Proposition 65 by failing to provide a required warning regarding exposure to Proposition 65 listed chemicals may be liable for a civil penalty of up to \$2,500 per day for each violation. [Health & Saf. Code § 25249.7](#). In practice, Proposition 65 cases are typically settled with an average settlement amount in the \$50,000 range plus an agreement to either reformulate or provide Proposition 65 warnings for the product.

California law does not expressly set penalties for violations of its rules regarding PBDEs. The California Attorney general, however, has stated that violation of California's similar phthalates ban is a violation of California's Unfair Competition Law ([CA. Bus. and Prof. Code § 17200](#)). See guidance letter [here](#). Violations of that law are subject to civil penalties of up to \$2,500 per violation. Presumably, violations of California's rules on and PBDEs will be subject to similar punishment.

Violations of the California Appliance Energy Efficiency Regulations are subject to administrative civil penalties for each non-compliant unit sold or offered for sale in California. [20 CCR § 1609\(a\)\(2\)](#). The enforcement regulations allow civil penalties up to a maximum of \$2,500 per unit. [20 CCR § 1609\(b\)\(1\)](#); [Cal. Pub. Res. Code § 25402.11\(a\)\(1\)](#).

Illinois Law (flame retardants): A person who manufactures or distributes products containing more than 0.001% of pentaBDE or octaBDE is subject to a fine between \$10,000 and \$25,000 for each violation ([410 ILCS 48](#)).

Maine Law (toxic chemicals): Violators may be subject to a \$2,500-\$25,000 criminal penalty for each day of the violation, except the minimum amount for knowing violations is \$5,000 for each day of the violation. Violators may be subject to a \$100-\$10,000 civil penalty for each day of the violation or, if the violation relates to hazardous waste, of not more than \$25,000 for each day of the violation. [38 M.R.S. § 349](#).

Maine Law (lead): This section may be enforced in a civil action brought by the Attorney General under the Maine Unfair Trade Practices Act, except that the following provisions apply as penalties for violations of this section.

A. For the first violation by a manufacturer a warning must be given instead of an enforcement by the Attorney General if the employer has the equivalent of 25 or fewer full-time, year-round employees.

B. For all other violations the following provisions apply as penalties for violations of this section.

(1) For the first violation of this section, the penalty is not more than \$100 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$5,000.

(2) For a 2nd violation of this section, the penalty is not more than \$500 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$25,000.

(3) For a 3rd or subsequent violation of this section, the penalty is not more than \$1,000 per children's product manufactured, sold, distributed or offered for sale or distribution, with the total penalty not to exceed \$50,000.

(4) A penalty under this section may be waived by the court if it is determined that the person in good faith and with due diligence attempted to comply with the requirements of this section and promptly corrected after discovery any noncompliance with this section. [252 M.R.S. 1316-A](#).

Massachusetts Law (lead): A person who applies lead-based paint or glaze to a covered product or sells such a product is subject to a fine between \$100 and \$500 for each violation ([MGL 111.196](#), [105 CMR 460](#)). Each article to which a lead-based substance is applied constitutes a separate violation. A person who willfully applies a lead-based substance to a toy or sells such a toy is subject to imprisonment for up to three months for each violation. In addition, any article of personal property in violation of the lead-based substance law may be embargoed by the Massachusetts Department of Environmental Protection.

Massachusetts Law (banned hazardous substances): Violators are subject to a fine between \$100 and \$500 and/or imprisonment up to 90 days on the first offense and on subsequent offenses, subject to imprisonment for up to 1 year and/or a fine between \$600 and \$3,000 ([MGL 94B § 4](#)). When an authorized inspector has probable cause to believe that a product is a banned hazardous substance, he must mark the substance as banned and give notice to the manufacturer, the distributor, and the owner of the product ([MGL 94B § 5](#)). He must also embargo the product. The manufacturer, distributor, or owner may remove the product from public display but may not remove it from the premises. The product will be considered a banned hazardous substance until the proceedings are complete. If the court finds that the embargoed article is banned, the article will be destroyed at the expense of the manufacturer, distributor, or owner under supervision of the inspector, and all court costs and fees and storage expenses will be taxed against the manufacturer, distributor or owner.

New York Law (flame retardants): Violation of New York's law regarding brominated flame retardants is also a misdemeanor; each product made, sold or offered for sale is a separate violation. ([Environmental Conservation Law art 37, § 37-0111\(5\)](#)).

Washington Law (PBDE ban): The Department of Ecology may issue a warning letter to a manufacturer that produces, sells, or distributes prohibited products (i.e., products containing the banned PBDEs) ([RCW 70.76](#)). If compliance is not achieved

one year after the warning letter is sent, the Department of Ecology may assess civil penalties: up to \$1,000/violation for a first offense and up to \$5,000 for each repeat offense. In addition, a manufacturer that knowingly produces, sells, or distributes prohibited products must recall the product and reimburse the retailer or any other purchaser for the product and any applicable shipping and handling for returning the products.

Comments

Comments

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

Federal Law:

Battery Chargers and EPS: Each manufacturer, before distributing in commerce any basic model of a battery charger or external power supply must submit a certification report to US DOE certifying that each basic model meets the applicable energy conservation standards. See generally, [10 CFR Part 429](#). As part of this certification process, manufacturers must use certain test procedures. See [10 C.F.R. § 429.39](#) and [Appendix Y to Subpart B of Part 430—Uniform Test Method for Measuring the Energy Consumption of Battery Chargers](#) for battery chargers and [10 C.F.R. Pt. 430, Subpt. B, App. Z](#) and [10 C.F.R. § 429.37](#) for external power supplies. For details regarding the contents of the certification report and submittal requirements for both products, see [10 C.F.R. § 429.12](#).

Certifications should be submitted to DOE via the CCMS system. General CMS instructions are available here:

<https://www.regulations.doe.gov/ccms>

The battery chargers template, 5.1, is available here: https://www.regulations.doe.gov/ccms/templates/current-ccms-templates/Template_Battery_Chargers_v5.1/view

The EPS templates are available here:

- [External Power Supplies Other Than Switch-Selectable & Adaptive Single-Voltage External Power Supplies, v5.1](#)

- [Switch-Selectable & Adaptive Single-Voltage External Power Supplies, v5.1](#)

- [External Power Supplies - Spare and Service Part Sales Exempt from Level VI Standards, v5.0](#)

Decathlon must maintain records of these certification reports as well as the underlying test data for at least two years from the date that Decathlon notifies DOE that the model has been discontinued. [10 C.F.R. § 429.71](#).

FCC Radio Frequency Devices

Unless they are considered “intentional radiators,” Decathlon products will likely require only require compliance with SDoC procedures (intentional radiators, in contrast, are subject to much more stringent certification requirements). [47 CFR 15.101](#).

Supplier’s Declaration of Conformity (“SDoC”) is a procedure that requires the party responsible for compliance ensure that the equipment complies with the appropriate technical standards. The responsible party, who must be located in the United States, is not required to file an equipment authorization application with the Commission or a Telecommunication Certification Body (“TCB”). Equipment authorized under the SDoC procedure is not listed in a Commission database. However, the responsible party or any other party marketing the equipment must provide a test report and other information demonstrating compliance with the rules upon request by the Commission. The responsible party has the option to use the more rigorous certification procedure in place of the SDoC procedure. [47 C.F.R. § 2.906](#)

With respect to equipment undergoing the SDoC procedure, the “responsible party” is either the manufacturer or, in the case of imported products, the distributor. [47 C.F.R. § 2.909](#). Retailers may also enter into an agreement with the responsible party

to assume compliance responsibilities. In most cases, then, Decathlon will be considered the “responsible party.” Note that the responsible party must be located in the United States. [47 C.F.R. § 2.1077](#).

The responsible party shall maintain the records listed as follows:

- A record of the original design drawings and specifications and all changes that have been made that may affect compliance with the standards and the requirements of [§2.931](#).
- A record of the procedures used for production inspection and testing to ensure conformance with the standards and the requirements of [§2.931](#).
- A record of the test results that demonstrate compliance with the appropriate regulations in this chapter.
- A record of the measurements made on an appropriate test site that demonstrates compliance with the applicable regulations. The record shall:
 - Indicate the actual date all testing was performed;
 - State the name of the test laboratory, company, or individual performing the testing. The Commission may request additional information regarding the test site, the test equipment or the qualifications of the company or individual performing the tests;
 - Contain a description of how the device was actually tested, identifying the measurement procedure and test equipment that was used;
 - Contain a description of the equipment under test (EUT) and support equipment connected to, or installed within, the EUT;
 - Identify the EUT and support equipment by trade name and model number and, if appropriate, by FCC Identifier and serial number;
 - Indicate the types and lengths of connecting cables used and how they were arranged or moved during testing;
 - Contain at least two drawings or photographs showing the test set-up for the highest line conducted emission and showing the test set-up for the highest radiated emission. These drawings or photographs must show enough detail to confirm other information contained in the test report. Any photographs used must clearly show the test configuration used;
 - List all modifications, if any, made to the EUT by the testing company or individual to achieve compliance with the regulations in this chapter;
 - Include all of the data required to show compliance with the appropriate regulations in this chapter;
 - Contain, on the test report, the signature of the individual responsible for testing the product along with the name and signature of an official of the responsible party, as designated in [§2.909](#); and
 - A copy of the compliance information, as described in [§2.1077](#), required to be provided with the equipment.

If radio frequency equipment is modified by any party other than the original responsible party, and that party is not working under the authorization of the original responsible party, the party performing the modifications is not required to obtain the original design drawings specified in paragraph (a)(1) of this section. However, the party performing the modifications must maintain records showing the changes made to the equipment along with the records required in paragraph (a)(3) of this section. A new equipment authorization may also be required.

California Law (energy efficiency):

Covered appliances, including Battery Charging Systems, must be registered by the manufacturer with the California Energy Commission. Information required to be submitted for each product category is found in [20 CCR 1606](#), and [Table X](#) of same. Per 20 CCR 1606(a), the “filing statements” detailed in 1606(a) are not required for Power Supplies in particular, however other Appliance Efficiency requirements still apply to this category.

Note: Certain California requirements for BCS have been preempted by the federal BCS standard, however, California certification is still required even for federally regulated battery chargers as outlined in the advisory below and the [20 CCR 1606](#) regulations. <https://www.energy.ca.gov/programs-and-topics/programs/appliance-efficiency-program-outreach-and-education/federal-battery>.

The California certification process is detailed here:

- General compliance assistance: http://www.energy.ca.gov/appliances/forms/webnr_documents/Title_20_Flyer_Compliance_Assistance.pdf
- Submission of declaration and certification data (meeting requirements of [20 Cal. Code Regs. § 1606](#)) to CA Energy Commission via the Modernized Appliance Efficiency Database System (MAEDBS).
- Alternatively, a company may delegate certification responsibilities to third-party certifier.

See [General Instructions](#) for more information about the certification process, and see http://www.energy.ca.gov/applications/database/forms_instructions_cert/Electronics/ for Battery Charger certification packets.

Massachusetts Law (mercury-added products): No mercury-added product shall be offered for final sale or use or distributed in the commonwealth without notification in writing by the manufacturer of the product to the department through IMERC within 30 days of the product's release in accordance with this section ([MGL 21H](#)).

Voluntary Standards/Certifications

There are many voluntary standards that apply to products that contain electrical and battery components. These standards include those issued by UL, ANSI, ASTM, and IEEE, among others. While complying with these voluntary standards is expensive and not mandatory to sell products in the U.S. market, meeting at least one applicable voluntary safety standard is the norm and is important to ensure product safety and minimize liability if a product covered by these standards malfunctions in some way.

UL voluntary standards are particularly important for wall-powered and battery-powered devices, as UL standards are generally expected for products on the U.S. market. Depending on the product and safety standard, some CE standards may be equivalent to UL or other standards. Decathlon may want to consult with an experienced testing lab regarding its electronic and battery-powered products to see if other qualifications they have, such as CE mark, cover the same areas as the UL standard applicable to that product.

One way product manufacturers can certify that a product complies with a voluntary standard is by working with a Nationally Recognized Testing Laboratory (NRTL). NRTLs are designated by the U.S. Occupational Safety and Health Administration (OSHA), which regulates certain equipment found in workplaces. OSHA's regulations are generally not applicable to the sale of consumer products; however, NRTLs have become the standard for consumer product safety certification. There are nearly twenty different NRTLs recognized by OSHA, a list of which can be found [here](#). Each NRTL has their own registered certification mark that may accompany a product that has been tested and certified for a certain standard by that NRTL. Note that UL is both a NRTL and a standard author. Other NRTLs, apart from UL, can certify that a product meets a UL standard. However, the mark on the product will be that of the NRTL, not of UL. To obtain a UL mark, the product must be tested by UL itself.

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Federal Law:

Test methods for "external power supplies" are set forth at [10 C.F.R. Pt. 430, Subpt. B, App. Z](#). Decathlon is not required to use a particular laboratory.

Test methods for "battery charging systems" are set forth at [10 CFR Pt.430, Subpt. B, App. Y](#). Decathlon is not required to use a particular laboratory.

FCC Radio Frequency Devices

As noted above, unless they are considered "intentional radiators," Decathlon products will likely only require SDoC. [47 CFR 15.101](#). Equipment approved using SDoC is required to be tested, however, it is not necessary to use an FCC-recognized accredited testing laboratory. However, as minimum the testing laboratory used is required to maintain a record of the measurement facilities as specified in [Section 2.948](#) and a record of the measurements made as specified in [Section 2.938](#).

California Law:

California Energy Commission Testing Requirements. Per 20 CFR Section 1603, (1) The manufacturer shall cause the testing of units of each basic model of appliance within the scope of Section 1601, using the applicable test method listed in Section 1604 unless otherwise provided in subsection (c) of this section. If the manufacturer of the basic model does not participate in an approved industry certification program for the basic model, or does not apply such a program to test all units under this Article, the testing shall be at a laboratory that the Executive Director determines, under Section 1608(i), that: (1) has conducted tests using the applicable test method within the previous 12 months; (2) agrees to and does interpret and apply the applicable test method set forth in Section 1604 precisely as written; (A)for laboratories testing federally regulated appliances and equipment, agrees to and does interpret and apply any applicable provisions of 10 C.F.R. §429, Subpart C; (3) has, and keeps properly calibrated and maintained, all equipment, material, and facilities necessary to apply the applicable test method precisely as written; (4) agrees to and does maintain copies of all test reports, and provides any such report to the Executive Director on request, for all basic models that are still in commercial production; and (5) agrees to and does allow the Executive Director to witness any test of such an appliance on request, up to once per calendar year for each basic model.

Power Supplies. Per 20 CCR 1604(u), the test method for Class A federally regulated external power supplies is 10 C.F.R. section 430.23(bb) (Appendix Z to Subpart B of part 430).

(2) The test method for state- regulated external power supplies is US EPA "Test Method for Calculating the Energy Efficiency of Single-Voltage External AC-DC and AC-AC Power Supplies" dated August 11, 2004, except that the test voltage specified in Section 4(d) of the test method shall be only 115 volts, 60 Hz.

Battery Charging Systems. Note: California requirements for BCS have been preempted by the federal BCS standard so long as the product meets the federal definition of Battery Charging System. See [10 C.F.R. § 430.33](#) and <https://www.energy.ca.gov/programs-and-topics/programs/appliance-efficiency-program-outreach-and-education/federal-battery>.

For BCS that do not meet the federal definition, the manufacturer must cause the testing of each basic model of battery charging system using an applicable test method found in [20 CCR § 1604\(w\)](#); [20 CCR § 1603\(a\)](#).

If the manufacturer of the basic model does not participate in an approved industry certification program for the basic model, or does not apply such a program to test all units, the testing must be conducted through a listed approved laboratory (or you may apply to the CA Energy Commission for approval to use alternative laboratory that is not listed).

Comments

Comments

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

See Certifications/Registrations section.

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

None identified.

Comments

Importation rules

General rules

What are the general rules in order to import the product ?

Federal Law:

General Requirements: All U.S. imports must generally comply with country of origin marking regulations found in Marking of Imported Articles and Containers law ([19 U.S.C. § 1304](#)) and regulations ([19 C.F.R. § 134](#)). When an article or its container is required to be marked with the country of origin, the marking is considered sufficiently permanent if it will remain on the article or container until it reaches the ultimate purchaser. See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>.

External Power Supplies/Battery Chargers

Imported "external power supplies" and "battery chargers" must comply with the DOE energy conservation requirements described in this card. Non-compliant products will be refused entry. [10 C.F.R. § 429.5](#).

FCC Radio Frequency Devices

Unintentional radiators must comply with FCC regulations in order to be imported into the United States. See FCC guidance available [here](#). An equipment authorization procedure, such as the SDoC procedure, is required before a product can be marketed, imported, or used in the United States.

Requirements specific to chemical substances as part of articles: Importers and processors of a chemical substance as part of an article are generally exempted from requirements under the Toxic Substances Control Act ("TSCA"), but the exemption can be made inapplicable if U.S. EPA makes an affirmative finding that there is reasonable potential for exposure to a chemical substance (such as through the surface coating) through an article or category of articles. 15 U.S.C. § 2605(a)(5). For an example of a TSCA applicability analysis, see Wood Products Card.

U.S. EPA does issue Significant New Use Rules ("SNURs") under TSCA that remove article exemptions. For example, U.S. EPA's SNUR for long-chain perfluoroalkyl carboxylate ("LCPFAC") chemical substances removed the article exemption for persons who import a subset of LCPFAC chemical substances as part of surface coatings on articles. [See 85 Fed. Reg. 45,109 \(July 27, 2020\)](#).

SNURs are chemical and use specific. Additional information on TSCA and SNURs is available here: <https://www.epa.gov/chemicals-under-tsca>

Documents

What are the required documents ?

Federal Law:

Entry Documents (for U.S. Imports generally):

Within 15 calendar days of the date that a shipment arrives at a U.S. port of entry, entry documents must be filed at a location specified by the port director. These documents are:

- Entry Manifest (CBP Form 7533) or Application and Special Permit for immediate Delivery (CBP Form 3461) or other form of merchandise release required by the port director,
- Evidence of right to make entry,
- Commercial invoice or a pro forma invoice when the commercial invoice cannot be produced,
- Packing lists, if appropriate,
- Other documents necessary to determine merchandise admissibility.

If the goods are to be released from CBP custody at the time of entry, an entry summary for consumption must be filed and estimated duties deposited at the port of entry within 10 working days of the goods' entry.

See <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf> at pp. 12 and 35-37.

FCC Radio Frequency Devices

If requested, the ultimate consignee must be ready to provide to Customs and/or the FCC the specific equipment authorization documentation, i.e., the records required to be kept under the SDoC program, described above in the Certification/Registration section. See FCC guidance available [here](#).

Time period

In which time period may we obtain the right to import ?

None specified. But see tips for new importers and exporters at <http://www.cbp.gov/trade/basic-import-export/importer-exporter-tips>

Administration

What is the administration in charge of importations ? Name and address ?

U.S. Customs & Border Protection

OPA/CBP INFO Center

1300 Pennsylvania Avenue N.W., MS: 1345

Washington, DC 20229

United States of America

Comments

Comments

Helpful CBP publication: <http://www.cbp.gov/sites/default/files/documents/Importing%20into%20the%20U.S.pdf>

OPA/CBP INFO Center Phone contact information:
General Inquiries: 877-227-5511

International Callers: 202-325-8000

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

U.S. CBP inspects imports generally.

FCC Radio Frequency Devices

FCC also receives information regarding shipments falling within certain tariff codes and may examine or seek additional information regarding same. FCC representatives may examine or test any radio frequency device that is imported, including unintentional radiators. If the radio frequency device has already entered the U.S., the subsequent owners must, upon request within one year of the date of entry, make that device available for examination or testing by the FCC. [47 CFR § 2.1207](#).

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

See Certifications/Registrations section.

Documents

What are the required documents ?

See Certifications/Registrations section.

Delay

What is the delay to obtain the right to commercialize ?

None identified.

Display in store

Is there some specific rules on the way to display the product in store ?

California Law:

None identified, unless a Proposition 65 warning is required for the product under California law and Decathlon chooses to provide the warning via a sign or shelf tag in the store rather than by a marking on the product packaging.

Display on internet

Is there some specific mentions to display the product on internet ?

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

None identified.

Comments

Comments

Administration

What is the administration in charge of commercialization ? Name and address ?

None identified.

Documents

[Decathlon - Importation Rules Insert.pdf](#)

[Decathlon - Chemical Substances Insert.pdf](#)